

26PR00388 Matter of Panfiglio Family Trust

County: sonoma

Division: Probate

Hearing date: 2026-11-12

Motion: Demurrer to June 16, 2026 Petition to Remove Rieger as Trustee of Survivor's Trust

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Matter of Panfiglio Family Trust

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Demurrer to June 16, 2026 Petition to Remove Rieger as Trustee of Survivor's Trust

Tentative Ruling: The demurrer is **OVERRULED**. The parties concur that Joseph D. Panfiglio, Sr. ("Joseph Sr.") was the sole beneficiary of the Survivor's Trust and the Exemption Trust created by the Panfiglio Family Trust upon the passing of Surviving Settlor, Kathleen Panfiglio. Thus, Joseph Sr. was entitled to distribution, and his interest vested, upon the passing of Kathleen on July 9, 2025. While there is no allegation that the distribution to Joseph Sr. was ever made, his right to the trust res was established regardless. Were he still alive, the payment would be to him. However, Joseph Sr. died on May 2, 2026. The payment is thus due to his estate, in this case the Trustee of his Trust, the Panfiglio Living Trust created on May 21, 2002 by Joseph Sr. and his wife, Karen Panfiglio. The proper party to bring this action is the Trustee of Joseph Sr.'s trust or the beneficiary of Joseph Sr.'s trust, which is Karen. Pursuant to Probate Code section 24(c), Karen, through her power of attorney, has standing to bring this petition.

Joseph Jr.'s request for judicial notice of Sonoma County Superior Court Case No. 26PR00862, Estate of Joseph Dante Panfiglio, Sr. is **GRANTED** pursuant to Evidence Code section 452(d) subject to the following limitation. The Court does not take notice of the truth of hearsay statements in this case and documents contained therein. (Evid. Code §§ 452(d), 453; People v. Harbolt (1997) 61 Cal.App.4th 123, 126–127 [citations omitted] [courts may "take judicial notice of the existence of judicial opinions and court documents, along with the truth of the results reached—in the documents such as orders, statements of decision, and judgments—but cannot take judicial notice of the truth of hearsay statements in decisions or court files, including pleadings, affidavits, testimony, or statements of fact."].)

Joseph Jr.'s counsel shall submit a written order on its motion to the Court consistent with this tentative ruling and in compliance with Rule of Court 3.1312(a) and (b).

End of Tentative Ruling

Administrative

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